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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. FEDERAL EXPRESS CORPORATION, and DOES 1 through 10, inclusive, Defendants.	Case No. **DEFENDANT FEDERAL EXPRESS CORPORATION'S PETITION AND NOTICE OF REMOVAL OF CIVIL ACTION UNDER ARTICLE III OF THE U.S. CONSTITUTION AND 28 U.S.C. §§ 1332, 1441 AND 1446** **[DIVERSITY JURISDICTION]** Complaint Filed: July 15, 2026 Trial Date: Not Set

TO THE CLERK OF THE UNITED STATES DISTRICT COURT, EASTERN DISTRICT OF CALIFORNIA, PLAINTIFF BRENDAN NGEHSI NEWANFORBI, AND HIS ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE, pursuant to 28 U.S.C. §§ 1332, 1441, and 1446, Defendant FEDERAL EXPRESS CORPORATION (hereinafter, "Defendant") hereby removes the above captioned action from the Superior Court in the State of California County of San Joaquin to the United States District Court for the Eastern District of California.

This removal is based on diversity jurisdiction. As is set forth below, this case meets all of the diversity statute's requirements for removal and is timely and properly removed by the filing of this Notice. As required by 28 U.S.C. § 1446(d), Defendant is filing in the Superior Court of the State of California, County of San Joaquin and serving upon Plaintiff Brendan Ngehsi Newanforbi, in pro per, a Notice to State Court and Adverse Party of Removal of Civil Action to Federal Court with these removal papers.

In support of this Notice of Removal, Defendant states the following:

I. STATE COURT PROCEEDINGS

1. On July 15, 2026, Plaintiff Brendan Ngehsi Newanforbi ("Plaintiff") filed his Complaint in the Superior Court of California for the County of San Joaquin, entitled *Brendan Ngehsi Newanforbi v. Federal Express Corporation, a Delaware corporation, and Does 1 through 10, inclusive*, Case No. STKCVUWT20269118 ("Complaint"). (Declaration of Allison A. Kray ("Kray Decl.") at ¶ 3, Ex. 1).

2. The Complaint alleges the following causes of action: (1) Violation of Cal. Penal Code §290.46(j)(2)(E); (2) Failure to Hire in Violation of Public Policy; (3) Violation of ICRAA (Cal. Civ. Code § 1786 et seq.); (4) Invasion of Privacy (Cal. Const., Art. I,§ I); (5) Negligence Per Se; (6) Unlawful Business Practices (Bus. & Prof. Code § 17200 et seq.). A true and correct copy of the Complaint is attached as Exhibit 1 to the Declaration of Allison A. Kray at ¶ 3.

3. Plaintiff alleges he applied for employment with Defendant Federal

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Express Corporation in or about early 2025 for a position in Defendant's delivery and package handling operations in California. (Compl., ¶ 16). Plaintiff further alleges Defendant procured a pre-employment background check through First Advantage, an investigative consumer reporting agency. (*Id.,* ¶¶ 17-20). Plaintiff alleges, on information and belief, that the background screening report contained information derived from California's Megan's Law sex offender registry, that Defendant reviewed and considered that information, and that Defendant denied Plaintiff employment based in whole or in substantial part on Plaintiff's status as a registrant on the sex offender registry. (*Id*., ¶¶ 21-23, 26-28). Plaintiff alleges he suffered lost wages, lost employment benefits, lost career opportunities, emotional distress, and economic harm as a result of Defendant's decision not to hire him. (*Id*., ¶¶ 29-30, 42, 48, 53, 58, 63). Plaintiff further seeks statutory damages or penalties, punitive damages, attorneys' fees, costs, restitution, and injunctive relief. (*Id*., ¶¶ 37, 43, 48, 64; Prayer for Relief, pp. 16-17).

4. Pursuant to 28 U.S.C. § 1446(d), Exhibits 1-7 attached to the Declaration of Allison A. Kray in support of this Notice of Removal constitute all process, pleadings, and orders filed in the state court action in this matter. (Kray Decl. at ¶¶ 1-8, Exs. 1-7).

5. As set forth more fully below, based on the allegations of the Complaint and other evidence collected by Defendant, this Court has original jurisdiction pursuant to 28 U.S.C. § 1332 because it is a civil action between citizens of different states and the amount in controversy exceeds $75,000. Therefore, this action may be removed to this Court by Defendant pursuant to 28 U.S.C. § 1441(a).

II. DEFENDANT HAS SATISFIED THE PROCEDURAL REQUIREMENTS FOR REMOVAL

A. Timing of Removal is Proper.

6. Pursuant to 28 U.S.C. § 1446(b), "a notice of removal may be filed within thirty days after receipt by the defendant, though service or otherwise of a copy of an amended pleading, motion, order or other paper from which it may be first be

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ascertained that the case is on which is or has become removable." The 30-day removal period runs when the party seeking to remove receives a "paper from which it may first be ascertained that the case is . . . removable." 28 U.S.C. § 1446(b)(3).

7. As is set forth above, Plaintiff served the Complaint on Defendant on July 24, 2026. (Kray Decl. at ¶ 4, Ex. 2). Therefore, removal is timely, as the action is being removed within the thirtieth day of service and within one year after commencement of this action in accordance with 28 U.S.C. § 1446(b) and Federal Rules of Civil Procedure, Rule 6(a)(1)(C).

B. Venue is Proper.

8. Venue is proper in this Court pursuant to 28 U.S.C. § 1446 because this action was originally filed in San Joaquin Superior Court, located within the Eastern District. Venue of this action is also proper pursuant to 28 U.S.C. § 1391, providing that an action may be venued in a judicial district where a substantial part of the events or omissions giving rise to the claim occurred. *See* 28 U.S.C. § 1391(a).

C. Procedural Requirements for Removal are Met.

9. Pursuant to 28 U.S.C. § 1446(a), copies of all process, pleadings and orders served upon Defendant are attached as Exhibits 1-7 to the Kray Declaration in support of this Notice of Removal. Pursuant to 28 U.S.C. § 1446(d), a copy of this Notice of Removal, with all removal papers attached, is being served upon counsel for the Plaintiff and a copy is being filed with the Clerk of the Superior Court in San Joaquin County and with the Clerk of the Eastern District of California. (Kray Decl. at ¶ 8).

III. DEFENDANT HAS SATISFIED THE REQUIREMENTS FOR DIVERSITY JURISDICTION

10. This is a civil action over which this Court has original jurisdiction under 28 U.S.C. section 1332(a), in that the matter in controversy exceeds the sum or value of $75,000, exclusive of interest and costs, and is between . . . (1) citizens of different states. 28 U.S.C. §1332(a)(1).

A. There Exists Diversity Between the Parties.

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11. Citizenship of Defendant Federal Express Corporation. Defendant Federal Express Corporation was incorporated in Delaware with its principal place of business in Memphis, Tennessee. (Declaration of Shahram Eslami ("Eslami Decl.") at ¶ 3).

12. A corporation's citizenship is determined by its state of incorporation and principal place of business. 28 U.S.C. § 1332(c)(1). The Supreme Court has held that a corporation's principal place of business is its "nerve center." *Hertz Corp. v. Friend*, 559 U.S. 77, 88 (2010). A corporation's nerve center is its headquarters – "the place where a corporation's officers direct, control, and coordinate the corporation's activities." *Id.*

13. At the time the action commenced, Defendant Federal Express Corporation was, and continues to be, a citizen of the States of Delaware and Tennessee. Defendant was incorporated in Delaware on June 24, 1971. (Eslami Decl. at ¶ 3). Since 1973, Defendant's headquarters and principal place of business has been located in Memphis, Tennessee. (*Id.*). Currently, Defendant's world headquarters and principal place of business is located at 3610 Hacks Cross Road, Memphis, Tennessee 38125. (*Id.*). The majority of Defendant's high-level officers, including its President and Chief Executive Officer, Chief Operating Officer, Chief Financial Officer, Chief Legal Officer, and Chief Human Resources Officer, work in Memphis, Tennessee. (*Id.*). These high-level officers direct, control, and coordinate the corporation's activities from its Memphis headquarters.

14. If a party is a corporation, it is a citizen of both its state of incorporation and the state where it has its principal place of business. 28 U.S.C. § 1332(c)(1); *Hertz Corp., supra,* 599 U.S. at 92-93 ("[w]e conclude that the phrase 'principal place of business' refers to the place where the corporation's high level officers direct, control, and coordinate the corporation's activities."). Federal Express Corporation is a citizen of Delaware and Tennessee.

15. The citizenship of fictitiously named "Doe" defendants is to be disregarded for purposes of removal pursuant to 28 U.S.C. § 1441(a). Moreover, "Doe" defendants

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named but not served are not joined in this Notice of Removal. *Savelson v. W. States Bankcard Ass'n*, 731 F.2d 1423, 1429 (9th Cir. 1984).

16. Citizenship of Plaintiff. For diversity purposes, a person is a "citizen" of the state in which he or she is domiciled. *Kantor v. Wellesley Galleries, Ltd*., 704 F.2d 1088, 1090 (9th Cir. 1983). A person's domicile is the place he or she resides with the intention to remain, or to which he or she intends to return. *Kanter v. Warner-Lambert Co.*, 265 F.3d 853, 857 (9th Cir. 2001).

17. Plaintiff was a citizen of the State of California at the time this action was filed. Plaintiff alleges he is an individual residing in the County of San Joaquin, California. (Kray Decl., Ex.1, Compl., ¶ 4). *See Lew v. Moss*, 797 F.2d 747, 751 (9th Cir. 1986) (residency can create a rebuttable presumption of domicile supporting diversity of citizenship); *see also State Farm Mut. Auto Ins. Co. v. Dyer*, 19 F.3d 514, 519-20 (10th Cir. 1994) (allegation by party in state court complaint of residency "created a presumption of continuing residence in [state] and put the burden of coming forward with contrary evidence on the party seeking to prove otherwise"); *see also Smith v. Simmons*, 2008 U.S. Dist. LEXIS 21162, *22 (E.D. Cal. 2008) (place of residence provides "prima facie" case of domicile).

18. Therefore, under 28 U.S.C. § 1332(a), this action is between parties who are citizens of different states: Plaintiff, a citizen of California, and Defendant Federal Express Corporation, citizen of Delaware and Tennessee.

19. Once the foregoing minimal diversity has been established, removal is proper under 28 U.S.C. § 1332(d). *Serrano v. 180 Connect Inc.*, 478 F.3d 1018, 1019 (9th Cir. 2007).

B. The Amount In Controversy Exceeds $75,000.

20. This Action also meets the amount in controversy requirement for removal based on diversity jurisdiction. 28 U.S.C. Section 1332(a) authorizes the removal of cases in which there is diversity of citizenship between the parties and the matter in controversy exceeds the sum or value of $75,000.00, exclusive of interest and costs.

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21. In determining whether the amount in controversy exceeds $75,000.00, the Court must presume Plaintiff will prevail on his claims. *Kenneth Rothschild Trust v. Morgan Stanley Dean Witter,* 199 F.Supp.2d 993, 1001 (C.D. Cal. 2002), citing *Burns v. Windsor Ins.* Co., 31 F.3d 1092, 1096 (11th Cir. 1994) (the amount in controversy analysis presumes "plaintiff prevails on liability") and *Angus v. Shiley, Inc.,* 989 F.2d 142, 146 (3rd Cir. 1993) ("the amount in controversy is not measured by the low end of an open-ended claim, but rather by reasonable reading of the value of the rights being litigated."). "The amount in controversy is simply an estimate of the total amount in dispute, not a prospective assessment of defendant's liability." *Lewis v. Verizon Commc'ns, Inc.,* 627 F.3d 395, 401 (9th Cir. 2010). "In that sense, the amount in controversy reflects the maximum recovery the plaintiff could reasonably recover." *Arias v. Residence Inn by Marriott*, 936 F.3d 920, 927 (9th Cir. 2019) (citing *Chavez v. JPMorgan Chase & Co.,* 888 F.3d 413, 417 (9th Cir. 2018) (explaining that the amount in controversy includes all amounts "at stake" in the litigation "whatever the likelihood that [the plaintiff] will actually recover them.").

22. The amount in controversy may include general and special compensatory damages and attorneys' fees recoverable by statute. *Galt G/S v. JSS Scandinavia,* 142 F.3d 1150, 1155-56 (9th Cir. 1998); *Goldberg v. CPC Int'l, Inc.,* 678 F.2d 1365, 1367, *cert denied,* 459 U.S. 945 (9th Cir. 1982) (attorneys' fees may be taken into account to determine jurisdictional amount). The Court may examine the nature of the action and the relief sought, including attorneys' fees. *See, e.g., Simmons v. PCR Technology,* 209 F.Supp.2d 1029, 1035 (N.D. Cal. 2002) (attorneys' fees in individual employment discrimination cases often exceed damages). The Ninth Circuit has made clear that statutory attorneys' fees are included as a basis for determining the jurisdictional amount in controversy. *See Galt,* 142 F.3d at 1155-56. In determining whether the amount in controversy meets the jurisdictional minimum, attorneys' fees are calculable beyond the time of removal. *Simmons,* 209 F.Supp.2d at 1035.

23. Without admitting Plaintiff is entitled to recover any damages or penalties

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whatsoever or that Defendant is liable to Plaintiff in any way, based the allegations in the Complaint and the reasonable assumptions to be drawn from those allegations, the amount in controversy with respect to Plaintiff's individual claims exceeds $75,000, the jurisdictional requirement of this Court.

24. Per the Complaint, Plaintiff alleges he suffered lost wages, lost employment benefits, lost career opportunities, emotional distress, and economic harm as a result of Defendant's decision not to hire him. (Compl., ¶¶ 29-30, 42, 48, 53, 58, 63).

25. Plaintiff seeks a host of remedies, including statutory damages or penalties, punitive damages, attorneys' fees, costs, restitution, and injunctive relief. (*Id.,* ¶¶ 37, 43, 48, 64; Prayer for Relief, pp. 16-17).

26. Where, as here, a complaint filed in state court is unclear as to amount in controversy, a removing party need only show it is "more likely than not" that the amount in controversy exceeds $75,000. *Guglielmino v. McKee Foods Corp.,* 506 F.3d 696, 699 (9th Cir. 2007) (quoting *Sanchez v. Monumental Life Ins. Co.,* 102 F.3d 398 (9th Cir. 1996)). When determining whether a civil action exceeds the $75,000 jurisdictional amount in controversy requirement, the Court must presume the plaintiff will prevail on each and every one of his claims. *Kenneth Rothschild Trust, supra,* 199 F.Supp.2d at 1001 (citing *Burns v. Windsor Ins. Co.,* 31 F.3d 1092, 1096 (11th Cir. 1994) (the amount in controversy analysis presumes that "plaintiff prevails on liability.")). General, special, compensatory, and punitive damages, and attorneys' fees that are recoverable by statute may all be included in the jurisdictional amount in controversy calculation. *See, e.g., Galt, supra,* 142 F.3d at 1155, 1156; *Davenport v. Mutual Ben. Health & Acc. Ass'n,* 325 F.3d 785-87 (9th Cir. 1963).

27. Although the Complaint does not explicitly specify the amount in controversy sought by Plaintiff, "it is more likely than not" that the amount in controversy exceeds $75,000.

28. Compensatory damages: Plaintiff alleges that Defendant's conduct caused

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him to suffer economic damages, including lost wages, lost benefits, and lost career opportunities and professional advancement. (Compl., ¶ 29). Accordingly, the operative Complaint seeks compensatory damages for lost wages and other general and special damages (Compl., Prayer for Relief, p. 16). Defendant chose to not hire Plaintiff on or around March 19, 2025 (Compl., ¶ 25) as a part time package handler position. (Declaration of Gabriella Bow ("Bow Decl.") at ¶ 5, Ex. 8, Conditional Offer, pg. 2.) As of the date of his termination, Plaintiff would have earned at least $20.25 as a package handler in this facility in a part time position. (Bow Decl. at ¶ 6, Ex. 9.) Twenty hours per week at $20.25 per hour equates to $405 in earnings per week, not counting overtime. Although Defendant denies Plaintiff is entitled to recover any such damages, assuming *arguendo*, if Plaintiff were to recover lost wages from the time he was denied employment (i.e., March 19, 2025) until the present, this 75-week period between denial of plaintiff's employment and the removal of this action to federal court would equal $30,375 in alleged lost wages. Moreover, if the case proceeds to trial in August 2027, one year from this removal, and Plaintiff remains unemployed, he will be seeking a total of 127-weeks of lost wages, which is approximately $51,435, plus the additional "other compensation" he seeks.[1]

29. In addition, front pay awards in California frequently span a number of years. *See Smith v. Brown-Forman Distillers Corp.*, 196 Cal. App. 3d 503, 518 (1989) (front pay until mandatory retirement age reached); *Rabago-Alvarez v. Dart Industries, Inc.*, 55 Cal. App. 3d 91, 97 (1976) (four years); *Drzewiecki v. H&R Block, Inc.*, 24 Cal. App. 3d 695, 705 (1972) (ten years). Even conservatively estimating that Plaintiff seeks front pay benefits for only the two years after trial (i.e., 104 weeks), the amount of future wages in controversy in this case would total at least an additional $42,120 in wages. Based on Defendant's very conservative assumptions, Plaintiff's claim for lost wages

[1] Courts have found that one year from the date of removal is a "conservative estimate of the trial date" in employment cases. *Fisher v. HNTB Corp.*, 2018 U.S. Dist. LEXIS 205323, at *13 (C.D.Cal. Dec. 3, 2018); *Beltran v. Procare Pharm., LLC*, 2020 U.S. Dist. LEXIS 26098, at *7 (C.D.Cal. Feb. 14, 2020) (finding a one-year prospective trial date appropriate).

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alone is sufficient to satisfy the amount in controversy for purposes of diversity jurisdiction without considering additional damages (i.e., $51,435 in back pay and $42,120 in front pay for a total amount of **$93,555**).

30. Emotional Distress: Plaintiff's claims for emotional distress are likewise properly considered in determining the amount in controversy. In fact, in cases such as the instant action, the amount of controversy may be satisfied by the pleading of several different types of damages in the complaint, even though the exact dollar amount of each damages is not estimated by the removing party. *See Simmons, supra,* 209 F.Supp.2d at 1031-35 (finding that the plaintiff's alleged lost income of $25,600 at the time of removal, included with unspecified amounts for medical expense damages, emotional distress damages, punitive damages, and attorneys' fees anticipated to incur through trial, satisfy the amount in controversy required to establish diversity jurisdiction); *White v. FCI USA, Inc.*, 319 F.3d 672, 674 (5th Cir. 2003) (an employment claim including a "lengthy list of compensatory and punitive damages" including loss of pay, impaired earning capacity, emotional distress, etc. combined with a claim for attorneys' fees and punitive damages, was sufficient to exceed the $75,000 minimum required to establish diversity jurisdiction). Here, Plaintiff repeatedly alleges that he has suffered "severe emotional distress, including anxiety, humiliation, shame, and mental anguish" and seeks recovery for those harms. (Compl., ¶ 29).

31. California employment discrimination cases are illustrative that emotional distress damages alone in employment-related claims may greatly exceed the minimum statutory amount in controversy. For example, a jury in Sacramento County awarded a plaintiff $400,000 for his past pain and suffering in an employment-related action. *Weyhe v. Wal-Mart Stores, Inc.*, 2010 WL 3411462 (July 1, 2010). Similarly, in *Hernandez v. Regents of the University of California*, 2009 WL 6045700 (2009), a jury in Alameda County issued a $266,347 award for pain and suffering to a plaintiff-employee for employment-related claims. Finally, in *Estelle v. Los Angeles County Metropolitan Transportation Authority*, Case No. BC526217 (2015), another Los

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Angeles County jury awarded the plaintiff in an employment matter $625,000 in emotional distress damages. Indeed, an award of damages for emotional distress alone can reasonably be anticipated to be in excess of the jurisdictional minimum. *Simmons, supra*, 209 F. Supp. 2d at 1034 (citing case in which an award for pain and suffering in an employment case totaled $3.5 million and recognizing that "emotional distress damages in a successful employment discrimination case may be substantial"). Thus, the amount of controversy, when considering the potential amount of all damages sought by Plaintiff, including emotional distress damages, exceeds $75,000.

32. Statutory Damages: Plaintiff's first cause of action seeks the civil penalty authorized by California Penal Code section 290.46(j)(4)(A) – the greater of Plaintiff's actual damages or $25,000 – for each unlawful use of Plaintiff's sex offender registry information for employment purposes. This statutory minimum alone provides $25,000 toward the amount in controversy.

33. Attorneys' Fees: While Plaintiff seeks an unspecified amount of attorneys' fees, such fees may also be taken into account to determine jurisdictional amounts, if a statute authorizes fees to a successful litigant.[2] *Arias, supra,* 936 F.3d at 927 ("[A] court **must** include future attorneys' fees recoverable by statute or contract when assessing whether the amount-in-controversy requirement is met.") (emphasis added) (internal quotation marks and citations omitted). The measure of fees is that which accrues until the action is resolved. *Simmons, supra,* 209 F.Supp.2d 1029, 1034-35. Indeed, attorney's fees are not limited to those incurred up to removal. *Fritsch v. Swift Transp. Co. of Ariz., LLC*, 899 F.3d 785, 794 (9th Cir. 2018); *Arias, supra*, 936 F.3d at 928. Thus, the Court may examine the nature of the action and the relief sought and take judicial notice of attorney's fee awards in similar cases.

34. Plaintiff alleges causes of action for violations of California Penal Code section 290.46(j)(4)(A), which expressly provides for recovery of attorney fees.

[2] Defendant does not concede that Plaintiff, as a *pro se* litigant, is legally entitled to recover attorney's fees. However, Defendant includes potential future attorney's fees in this calculation solely to account for the possibility that Plaintiff may retain counsel as this matter progresses.

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Plaintiff also alleges violations of the California Investigative Consumer Reporting Agencies Act (ICRAA), which allows a prevailing plaintiff to recover attorney fees pursuant to California Civil Code section 1786.50. The Ninth Circuit recently held "a court must include future [post-removal] attorneys' fees recoverable by statute or contract when assessing whether the amount-in-controversy was met." *Fritsch, supra*, 899 F.3d at 794. The Court may take judicial notice of attorney's fee awards in similar cases. *See, e.g., Simmons*, *supra,* 209 F.Supp.2d at 1035 (noting that attorney's fees in individual employment discrimination cases often exceed damages).

35. Although Plaintiff does not plead FEHA claims, the Complaint asserts employment-related statutory and common-law claims arising from Defendant's alleged refusal to hire Plaintiff after a background-screening process. Representative California employment cases illustrate that attorneys' fees in single-plaintiff employment actions can be substantial. In 2013, the Superior Court of Sacramento County awarded a single plaintiff $367,378.50 in attorneys' fees in an employment matter. *Angel v. Sutter Health et al.*, Case No. 2009-00055279 (2013). Similarly, in 2012, the Orange County Superior Court awarded a single plaintiff $295,535.50 in attorney's fees on another employment matter. *Vargas v. City of Long Beach*, Case No. 30-2009-00126342 (2012). In *Wiley v. Wyndham Vacation Ownership Inc., et al*., Superior Court of Contra Costa County Case No. C05-01191, the Court awarded the plaintiff her attorney's fees and costs in the amount of $1,150,876.

36. Accordingly, Plaintiff's request for statutory attorneys' fees materially increases the amount in controversy. Even using a conservative estimate of **$50,000**, Plaintiff's recoverable attorneys' fees, when added to his claimed statutory damages, lost wages, emotional distress damages, punitive damages, restitution, and injunctive relief, further confirm that the amount in controversy exceeds $75,000.

37. Punitive Damages: It is well established that punitive damages are part of the amount in controversy in a civil action. *Gibson v. Chrysler Corp.,* 261 F.3d 927, 945 (9th Cir. 2001). Plaintiff seeks punitive damages in this matter. (*See* Compl., Prayer

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for Relief, p. 21). Punitive damages are oftentimes calculated as a multiplier of compensatory damages. "To assess the amount of punitive damages that is appropriate in a given case, the court considers the nature of the defendant's wrongdoing, the amount of compensatory damages, and the wealth of the particular defendant." *Am. Gen. Life & Accident Ins. Co. v. Findley*, 2013 U.S. Dist. LEXIS 41644, 48-49 (C.D. Cal. Mar. 15, 2013). The potential punitive damage award against a defendant such as Defendant alone may satisfy the amount in controversy requirement. In *Aucina v. Amoco Oil Co.,* 871 F. Supp. 332 (S.D. Iowa 1994), the defendant employer established that the amount in controversy exceeded the jurisdictional minimum where the former employee asserted claims for lost wages, lost benefits, mental anguish, and punitive damages. The court noted the defendant was a Fortune 500 Company and that [b]ecause the purpose of punitive damages is to capture a defendant's attention and deter others from similar conduct "the plaintiff's claim for punitive damages" might alone exceed the jurisdictional minimum. *Aucina, supra*, 871 F. Supp. at 334.

38. Here, Plaintiff filed a Notice of Amount of Punitive Damages Sought, stating that he "reserves the right to seek $25,000.00 in punitive damages". (Kray Decl., at ¶ 6, Ex. 8). Although Defendant vigorously denies Plaintiff's allegations, if Plaintiff were to prevail on the punitive damages claim, that claim alone could exceed the jurisdictional minimum. Therefore, Plaintiff's claim for punitive damages, if awarded, could exceed the threshold $75,000 amount on its own.

39. Based upon the foregoing, Plaintiff's claims exceed the $75,000 jurisdictional limit of this Court required by the diversity statute. Additionally, as set forth above, this is a civil action between citizens of different states. Consequently, this is a civil action over which this Court has original jurisdiction under 28 U.S.C. § 1332(a) and one that is properly removed to this Court pursuant to 28 U.S.C. §§ 1441 and 1446.

WHEREFORE, pursuant to 28 U.S.C. §§ 1332, 1441 and 1446(b), Defendant removes this case from the California Superior Court for the County of San Joaquin to the United States District Court, Eastern District of California.

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DATED: August 24, 2026

Respectfully submitted,

/s/ Allison A. Kray
Allison A. Kray
Attorney for Defendant
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CERTIFICATE OF SERVICE

Brendan Ngehsi Newanforbi v. Federal Express Corporation

I am a resident of the State of California, over the age of eighteen years, and not a party to the within action. My business address is Federal Express Corporation, 2601 Main Street, Suite 1100, Irvine, California 92614.

On August 24, 2026, I served the within document(s): **DEFENDANT FEDERAL EXPRESS CORPORATION'S PETITION AND NOTICE OF REMOVAL OF CIVIL ACTION UNDER ARTICLE III OF THE U.S. CONSTITUTION AND 28 U.S.C. §§ 1332, 1441 AND 1446**

☑	With the Clerk of the Court for the United States District Court-Eastern District of CA by using the Court's CM/ECF system and that service will be accomplished by the court's CM/ECF system to the person(s) as set forth below.
☐	By transmitting electronically document(s) listed above to the email address(es) listed below.
☑	By placing the document(s) listed above in a sealed envelope with postage thereon fully prepaid, in the United States Mail at Irvine, California addressed as set forth below.
☐	By arranging with First Legal Attorney Service to personally deliver the document(s) listed above to the person(s) at the address(es) set forth below.
☐	By placing the document(s) listed above in a sealed envelope with delivery fees provided for, addressed to the plaintiff as follows for collection by Federal Express for overnight delivery at Federal Express Corporation, 2601 Main Street, Suite 1100, Irvine, California 92614, in accordance with Federal Express Corporation's ordinary business practices.

BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
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Stockton, CA 95204
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bnn.cdla@gmail.com
PLAINTIFF, IN PRO PER

☑ *(Federal)* I declare that I am employed in the office of a member of the bar of this court at whose direction the service was made.

Executed on August 24, 2026, at Irvine, California.

/s/ Michele Wilson
Michele Wilson

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